

Respond to:

Kalman Hartig Jr. (in propria persona)
"Without Prejudice"
% 900 9th Ave East; Lot 100
Palmetto, Florida [34221]
Non-Domestic

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT, (a private corporation for
profit)
IN AND FOR MANATEE COUNTY (a private corporation for profit)

COLONIAL MANOR MHC HOLDINGS, LLC,	)	
	)	Cause Number: 2024-CC-2691
Plaintiff,	)	
	)	<u>NOTICE OF APPEARANCE</u>
vs	)	
	)	
KALMAN HARTIG	)	
	)	
Defendant.	)	

COMES NOW Kalman of the family Hartig, a live breathing man on the land and soil, am here by special divine appearance, to settle this matter, to call for a constitutional court of record, to ask for a summary judgment on the true facts placed on the record by my documents (See attachments).

1. The Defendant herein moves this court to dismiss this action for failure to properly identify the real party of interest, and hereby challenges the validity of the document identifying the Defendant as KALMAN HARTIG in upper case letters served on the 8th day of August, 2024, and must be stricken from the record for the following causes:

- (a) That said document does not reveal the true nature of the entity identified as KALMAN HARTIG.
- (b) That said document does not reveal the real party of interest in relation to the entity identified as KALMAN HARTIG.
- (c) That said document does not meet the minimal requirements for an equity claim in relation to said entity.

- (d) That said document does not contain supporting evidence that said entity has standing to sue or be sued.
- (e) That the evidence record provides no support for the presumption that KALMAN HARTIG is synonymous with Kalman Hartig.
- (f) That the presumption that KALMAN HARTIG is a party of interest in said document is hereby challenged pursuant to Florida Evidence Code 90.301 (1) (2), 90.303, 90.304 and 90.401 as required by 90.108.

Some questions on the other name in upper case letters.

The Constructive Trust with the misidentified party KALMAN HARTIG is inadmissible in that the Construct Trust defined as KALMAN HARTIG will confuse and mislead the jury and therefore must be stricken from the record pursuant to Florida Evidence Code 90.403 or in the alternative the petitioner herein demands an evidentiary hearing be set for a time and date certain and this court issue a subpoena duces tecum to the filer of said documents to come forth with all supporting evidence the presumption of said facts pursuant to Florida Evidence Code 90.108 and 90.501.

Wherefore for the above causes, the citizen identified as Kalman Hartig spelled in upper- and lower-case letters, hereby moves this court to strike all documents defining the Defendant as KALMAN HARTIG in all upper-case letters within the provisions of the rule of Misidentification as to idem sonans or in the alternative produce all records relating to the name in all upper-case letters.

The defendant also refutes, rejects, and rebuts the following presumptions:

1. Public Record

The Presumption of Public Record is that any matter brought before a lower Roman Courts is a matter for the public record when in fact it is presumed by the members of the private Bar Guild that the matter is a private Bar Guild business matter. Unless openly rebuked and rejected by stating clearly the matter is to be on the Public Record, the matter remains a private Bar Guild matter completely under private Bar Guild rules.

2. Public Service

The Presumption of Public Service is that all the members of the Private Bar Guild who have all sworn a solemn secret absolute oath to their Guild then act as public agents of the Government, or public officials by making additional oaths of public office that openly and deliberately contradict their private superior oaths to their own Guild. Unless openly rebuked and rejected, the claim stands that these private Bar Guild members are legitimate public servants and therefore trustees under public oath

3. Public Oath

The Presumption of Public Oath is that all members of the Private Bar Guild acting in the capacity of public officials who have sworn a solemn public oath remain bound by that oath and therefore bound to serve honestly, impartiality and fairly, as dictated by their oath. Unless openly challenged and demanded, the presumption stands that the Private Bar Guild members

have functioned under their public oath in contradiction to their Guild oath. If challenged, such individuals must recuse themselves as having a conflict of interest and cannot possibly stand under a public oath.

4. Immunity

The Presumption of Immunity is that key members of the Private Bar Guild in the capacity of public officials acting as judges, prosecutors and magistrates who have sworn a solemn public oath in good faith are immune from personal claims of injury and liability. Unless openly challenged and their oath demanded, the presumption stands that the members of the Private Bar Guild as public trustees acting as judges, prosecutors and magistrates are immune from any personal accountability for their actions.

5. Summons

The Presumption of Summons is that by custom a summons un rebutted stands and therefore one who attends Court is presumed to accept a position (defendant, juror, witness) and jurisdiction of the court. Attendance to court is usually invitation by summons. Unless the summons is rejected and returned, with a copy of the rejection filed prior to choosing to visit or attend, jurisdiction and position as the accused and the existence of guilt stands.

6. Custody

The Presumption of Custody is that by custom a summons or warrant for arrest un rebutted stands and therefore one who attends Court is presumed to be a thing and therefore liable to be detained in custody by Custodians. [This includes the dead legal fiction non-human PERSON that corporate-governments rules and regulations are written for.] Custodians may only lawfully hold custody of property and things, not flesh and blood soul possessing beings. Unless this presumption is openly challenged by rejection of summons and/or at court, the presumption stands you are a thing and property and therefore lawfully able to be kept in custody by custodians.

7. Court of Guardians

The Presumption of Court of Guardians is the presumption that as you may be listed as a resident of a ward of a local government area and have listed on your passport the letter P, you are a pauper and therefore under the Guardian powers of the government and its agents as a Court of Guardians. Unless this presumption is openly challenged to demonstrate you are both a general guardian and general executor of the matter (trust) before the court, the presumption stands and you are by default a pauper, and lunatic and therefore must obey the rules of the clerk of guardians (clerk of magistrate's court).

8. Court of Trustees

The Presumption of Court of Trustees is that members of the Private Bar Guild presume you accept the office of trustee as a public servant and government employee just by attending a Roman Court, as such Courts are always for public trustees by the rules of the Guild and the Roman System. Unless this presumption is openly challenged to state you are merely visiting by invitation to clear up the matter and you are not a government employee or public trustee in this instance, the presumption stands and is assumed as one of the most significant reasons to claim jurisdiction simply because you appeared.

9. Dual Role

The Presumption of Government acting in two roles as Executor and Beneficiary is that for the matter at hand, the Private Bar Guild appoint the judge/magistrate in the capacity of Executor while the Prosecutor acts in the capacity of Beneficiary of the trust for the current matter. Unless this presumption is openly challenged to demonstrate you are both a general guardian and general executor of the matter (trust) before the court, the presumption stands and you are by default the trustee, therefore must obey the rules of the executor (judge/magistrate).

10. False Executor

The Presumption of Executor De Son Tort is the presumption that if the accused does seek to

assert their right as Executor and Beneficiary over their body, mind, and soul they are acting as an Executor De Son Tort or a false executor challenging the rightful judge as Executor. Therefore, the judge/magistrate assumes the role of true executor and has the right to have you arrested, detained, fined, or forced into a psychiatric evaluation. Unless this presumption is openly challenged by not only asserting one's position as Executor as well as questioning if the judge or magistrate is seeking to act as Executor De Son Tort, but the presumption also stands, and a judge or magistrate of the private Bar guild may seek the assistance of bailiffs or sheriffs to assert their false claim.

11. Incompetence

The Presumption of Incompetence is the presumption that you are at least ignorant of the law, therefore incompetent to present yourself and argue properly. Therefore, the judge/ magistrate as executor has the right to have you arrested, detained, fined, or forced into a psychiatric evaluation. Unless this presumption is openly challenged by the fact that you know your position as executor and beneficiary and actively rebuke and object to any contrary presumptions, then it stands by the time of pleading that you are incompetent then the judge or magistrate can do what they need to keep you obedient.

12. Guilt

The Presumption of Guilt is the presumption that as it is presumed to be a private business meeting of the Bar Guild, you are guilty whether you plead guilty, do not plead, or plead not guilty. Therefore, unless you either have previously prepared an affidavit of truth and motion to dismiss with extreme prejudice onto the public record or call a demurrer, then the presumption is you are guilty, and the private Bar Guild can hold you until a bond is prepared to guarantee the amount the guild wants to profit from you.

Dated __December 16, 2024_____

Submitted

By _____
Kalman Hartig Jr. (in propria persona)